Number 18 *of* 2015

CUSTOMS ACT 2015

REVISED

Updated to 31 December 2020

This Revised Act is an administrative consolidation of the *Customs Act 2015*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Harassment, Harmful Communications and Related Offences Act 2020* (32/2020), enacted 28 December 2020, and all statutory instruments up to and including *Withdrawal of the United Kingdom from the European Union (Consequential Provisions) Act 2020 (Parts 8, 9, 10 and 11) (Commencement) Order 2020* (S.I. No. 723 of 2020), made 18 December 2020, were considered in the preparation of this Revised Act.

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Number 18 *of* 2015

CUSTOMS ACT 2015

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An Act to revise and partially consolidate the law relating to customs; to repeal the Customs Consolidation Act 1876 and certain other enactments; to make provision in connection with Council Regulation (EEC) No. 2913/92 of 12 October 1992 establishing the Community Customs Code; to give continuing effect to the Customs Co-operation Convention drawn up on the basis of Article K.3 of the Treaty on European Union, on mutual assistance and co-operation between customs administrations, done at Brussels on 18 December 1997 (Naples II Convention); to give effect to the Council Convention on centralised customs clearance concerning the allocation of national collection costs retained when traditional own resources are made available to the EU budget, done at Brussels on 10 March 2009; to give effect to Council Decision 2009/917/JHA of 30 November 2009 on the use of information technology for customs purposes (CIS Decision); and to provide for related matters.

[18 *th June*, 2015]

Be it enacted by the Oireachtas as follows:

PART 1

Preliminary and General

Short title, construction and commencement

1. (1) This Act may be cited as the Customs Act 2015.

(2) The Customs Acts and this Act shall be construed together as one.

(3) This Act comes into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

(4) Without prejudice to the generality of *subsection (3)* , an order or orders under that subsection may appoint different days for the coming into operation of *section 3* so as to effect the repeal or revocation provided by that section of—

(a) an enactment specified in *Part 1* or *Part 2* of *Schedule 1*, on different days for different purposes; or

(a) the circumstances in which reports are required to be submitted and may specify different reporting requirements for different types and classes of aircraft, and for different activities,

(b) the place and time for submission of such reports, and

(c) the form, manner and particulars of such reports.

(4) A person who contravenes *subsection (1)* or *(2)* commits an offence and is liable on summary conviction to a fine of €5,000.

Control of persons and their baggage

12. (1) A person entering or leaving the State shall—

(a) at such place as the Commissioners may designate and in such manner as the Commissioners may determine, declare to an officer of customs any goods included in his or her baggage or brought with him or her, which are liable to any duty or tax, or are subject to any prohibition or restriction on importation or exportation,

(b) answer such questions as may be put to him or her by an officer of customs, in exercise of the powers conferred on the officer by *section 31*, with respect to—

(i) the person's arrival or departure,

(ii) the person's identity, usual place of residence and actual or intended address within the State,

(iii) the person's baggage, and

(iv) anything included in that baggage or brought by that person by whatever means,

(c) if required by that officer, produce and unpack that baggage and any such thing for examination, and repack it following such examination, and

(d) remain present for the duration of such examination.

(2) For the purposes of *subsection (1)(a)*, where a channel system is in place at a customs port or customs airport, a person entering the State shall declare, by electing to enter and entering the red channel, that he or she has in his or her baggage, or has brought with him or her goods that are liable or may be liable to any duty or tax, or that are subject or may be subject to any prohibition or restriction on importation.

(3) A person entering the State who leaves a place approved under *section 7(1)*, or who leaves a customs port or customs airport, without making a declaration under *subsection (1)* shall be deemed to have declared that there are no goods included in his or her baggage or brought with him or her, that are liable or may be liable to any duty or tax, or that are subject or may be subject to any prohibition or restriction on importation.

(4) A person who contravenes *subsection (1)* commits an offence and is liable on summary conviction to a fine of €5,000.

(5) In this section and in *section 13*, "duty or tax" means duties of customs, excise duty or Value-Added Tax payable on goods imported or exported.

F3**[Customs control at customs ports**

12A. (1) The person in charge or taking charge of a vehicle containing goods which have been unloaded from a ferry at a place (at a customs port) approved under *section 7(1)(c)*, being a vehicle that has entered the State from a place, other than a place situate in another Member State, shall—

(a) comply with such instructions, as are given to him or her electronically or by other means by the Commissioners, regarding the movement of the vehicle to a place designated by the Commissioners as an area of customs supervision, and

(b) ensure that the vehicle remains at that place and shall comply with such further instructions as are given to him or her (by the foregoing means) by the Commissioners as the Commissioners consider appropriate, until clearance (by the foregoing means) to depart that place is given.

(2) A person who fails, without lawful excuse, to—

(a) comply with any instruction given to him or her under *paragraph (a)* or *(b)* of *subsection (1)*, or

(b) ensure that the vehicle referred to in *subsection (1)* remains, in accordance with *paragraph (b)* of that subsection, at the place there referred to,

commits an offence.

(3) A person who commits an offence under *subsection (2)* is liable, on summary conviction, to a fine of €5,000 or imprisonment for a term not exceeding 12 months or both.

(4) In this section, 'ferry' means a vessel with facilities that enable vehicles to be driven on board the vessel and to be driven off it.**]**

F4**[Procedures for goods entering or departing the State by ferry (from or to a place outside the customs territory of the Union)**

12B. (1) In this section—

'carrier' means a person who has assumed responsibility for carriage of a relevant shipment or an empty vehicle, or the effecting of a relevant movement in relation to goods, into or out of the State by ferry and includes a person who provides haulage services or logistical services in relation to any of the foregoing matters;

'Council Regulation' means Council Regulation (EC) No. 1186/2009 of 16 November 2009[13] setting up a Community system of reliefs from customs duty;

'Delegated Regulation' means Commission Delegated Regulation (EU) 2015/2446 of 28 July 2015[14] supplementing Regulation (EU) No 952/2013 of the European Parliament and of the Council as regards detailed rules concerning certain provisions of the Union Customs Code;

'electronic data processing technique' means such electronic data processing technique as stands specified by the Commissioners for the purposes of this section;

'export' means the exportation or removal from the State of any goods to a place outside the customs territory of the Union;

13 OJ No. L 324, 10.12.2009, p.23
14 OJ No. L 343, 29.12.2015, p.1